

of immunity by its own sovereign and by various foreign sovereigns, and continues thus :

The principle upon which the English Court acts is established by the decisions of the Court of Appeal in the *Parlement Belge*, 5 P.D. 197 and the *Porto Alexandre*, 1920, P. 30.

It is an application to foreign sovereigns of the rule that the British Sovereign is immune from the jurisdiction of the British Court except in cases where he consents. The British sovereign cannot be made subject to the jurisdiction of his own courts by any form of procedure.

The like immunity, in compliance with the international comity which induces every Sovereign State to respect the independence and dignity of every other sovereign state, is extended to a foreign Sovereign State, such foreign Sovereign State cannot, in the English Courts, be impleaded against its property. It makes no difference whether the Sovereign State is using the property in trade or otherwise. (London Conference Report, p. 4.)

Marsden's " *Collisions at Sea* " (p. 226) is to the same effect. After referring to many cases it states that it is a principle of international law that a sovereign prince or state cannot be sued in a foreign court, and, on the same principle, proceedings in rem cannot be taken against the public ships of a foreign sovereign, and that where a ship belonging to a foreign sovereign negligently causes collision damage no maritime lien attaches which can revive upon a subsequent transfer of the ship to private ownership.

Mr. Nunn, in his little book (*The Principles of*